

Nevertheless, under section 2024.050, subdivision (a), a party may seek leave of court to reopen discovery after a new trial date has been set. The granting or denial of a motion to reopen is at the Court's discretion. (Code Civ. Proc., § 2024.050, subd. (b).)

In the published portion of *Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.* (2008) 165 Cal.App.4th 1568, 1571, the court concluded the trial court "botched its responsibilities under the Civil Discovery Act and prejudicially abused its discretion in granting [plaintiff's] motion to compel after the discovery motion cutoff date when [plaintiff] had not moved to reopen discovery under Code of Civil Procedure section 2024.050." The Court further held that a trial court's discretion to hear a discovery motion after the discovery motion cutoff date "is governed by section 2024.050, which requires the court to consider various factors in determining whether to hear a discovery motion after the cutoff date. Because the trial court [] did not require [plaintiff] to file a motion to reopen discovery under section 2024.050 before, or simultaneously with, filing its motion to compel, there is no indication in the record that the court considered any of the relevant factors." (*Ibid.*)

Given it is past the discovery cutoff date and there is no motion pending to reopen discovery, it would be an abuse of discretion for the Court to consider Honda's motion. The motion, therefore, is **DENIED** as untimely.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506404	WARREN VS VOLKSWAGEN GROUP OF AMERICA, INC.	MOTION TO COMPEL FURTHER DISCOVERY

Tentative Ruling:

Moving party: Plf, Kesha Warren
Represented by: Quill & Arrow, LLP

Responding party: Def, Volkswagen Group of America, Inc. (VW)
Represented by: Squire Patton Boggs (US), LLP

Plaintiff, Kesha Warren, alleges that on 11/18/24 she leased a 2024 Audi Q8, which was accompanied by an express warranty issued by Defendant, Volkswagen Group of America, Inc. (VW). She alleges the vehicle was delivered to her with serious defects and nonconformities to warranty as to the electrical and structural systems that impair the use, value, and/or safety of the vehicle. Plaintiff presented the vehicle to an authorized repair facility but, they were unable to conform the vehicle to warranty after a reasonable number of repair attempts. Plaintiff filed her Complaint on 11/5/25 alleging three causes of action for violations of the Song Beverly Consumer Warranty Act (SBA): 1) breach of express warranty; 2) breach of implied warranty; and, 3) violation of Civil Code § 1793.2(b).

Plaintiff, Kesha Warren, brings this motion to compel further responses to Requests for Production of Documents (Set One) [RPD] Nos. 1-31 from Defendant, VW, and to strike the objections. (CCP § 2031.310.) Plaintiff asserts that the objections are meritless, responses are inadequate and not Code-compliant, and many responsive documents were not produced.

Defendant, VW, opposes the motion arguing that VW timely provided responses and 757 pages of responsive documents; that before VW could respond to Plaintiff's meet and confer letters, this motion was filed, which shows a failure to engage in meaningful meet and confer efforts; that after this motion was filed, VW negotiated a stipulation and obtained a protective order to restrict the use and dissemination of VW's confidential and proprietary information; that confidential and proprietary documents will be produced prior to the hearing; that documents were produced as to all but, RPD No. 30, which remains in dispute; and the objections are warranted.

The Reply asserts that VW never supplemented its document production; never provided a privilege log; has not provided "core" documents including warranty claim submissions regarding the subject vehicle; that Plaintiff established good cause but, VW failed to support its objections; and, that policy and training as to evaluating vehicles for repurchase or replacement are not privileged.

Analysis:

MOTION TO COMPEL FURTHER RESPONSES TO RPDs

Where responses to requests for production of documents have been timely served but are deemed deficient by the requesting party (e.g., the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general), that party may file a motion to compel further responses. (CCP § 2031.310.)

Plaintiff also brings this motion pursuant to CCP § 2031.320(a), which provides that where a responding party *agrees* to permit inspection of documents, and then fails to do so, a motion to compel compliance may be made on noticed motion. There is no fixed time limit on such a motion, and no attempt to resolve informally need be shown. (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 8:1508 citing CCP § 2031.320(a); see *Standon Co., Inc. v. Sup. Ct. (Kim)* (1990) 225 Cal.App.3d 898, 903.)

Meet and Confer Efforts

A motion to compel a further response to document production requests must be accompanied by a meet and confer declaration. (CCP § 2031.310(b).) The declaration must state facts showing a "reasonable and good faith attempt, *either in person, by telephone, or by videoconference*" to resolve informally the issues presented by the motion before filing the motion. (CCP § 2016.040(a).) "The purpose of the meet and confer requirement is to force lawyers to reexamine their positions, and to narrow their discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter. It also enables parties and counsel to avoid sanctions that are likely to be

imposed if the matter comes before the court.” (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 8:1159 citing *Steward v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016.)

On 1/27/26, Plaintiff propounded the subject RPD Nos. 1-31. (Dec. Dean ¶ 19, Ex. “6”.) On 3/2/26, VW responded to the RPDs asserting objections, and documents but, failed to produce many responsive documents. (*Id.* ¶ 20, Ex. “7”.) On 3/19/26, Plaintiff’s counsel sent a meet and confer letter to defense counsel detailing the deficiencies in VW’s responses. (*Id.* ¶ 22, Ex. “8”.) VW did not respond to the letter. (*Id.* ¶ 23.) On 3/27/26, Plaintiff’s counsel sent a further meet and confer letter. (*Id.* ¶¶ 24, 27, Ex. “9”.) VW did not respond to this letter either. (*Id.* ¶ 28.) Therefore, Plaintiff concludes despite meet and confer efforts, the parties have reached an impasse and VW will not likely supplement their responses without a court order. (*Id.* ¶ 29.)

Importantly, Plaintiff’s meet and confer efforts were insufficient because she was required to meet and confer “in person, by telephone, or by videoconference”, which did not occur. Nevertheless, the Court will reach the merits of the motion.

Good Cause

Nonetheless, Plaintiff has demonstrated good cause to seek the subject documents. Civil Code §1794(c) authorizes a civil penalty in lemon law cases “[i]f the buyer establishes that the failure to comply was willful.” A violation is willful if the manufacturer knew of its obligations but intentionally failed to fulfill them. (*Schreidel v. American Honda Motor Co.* (1995) 34 Cal.App.4th 1242, 1249-1250.) Thus, if VW was aware of the types of problems in its 2024 Audi Q8 vehicles but, failed to comply with its obligations under Song-Beverly, then VW could be found to have willfully violated the statute.

On the Merits

Plaintiff asserts that RPD Nos. 1-14 concern only her vehicle. For instance, RPD No. 1 asks for all documents regarding the subject vehicle that are within VW’s Customer Relations Center.

Plaintiff asserts that RPD Nos. 15-22 seek VW’s policies and procedures for handling SBA cases. RPD Nos. 23-29 seek VW’s warranty policy and procedures used for handling *warranty* issues. For instance, RPD No. 15 seeks documents that evidence, describe, or relate to VW’s rules, policies, or procedures since 2020 concerning the issuance of refunds to buyers or providing replacement vehicles in California under the SBA.

Finally, Plaintiff asserts that RPD Nos. 30-31 seek documents concerning similar customer complaints in other 2024 Audi Q8 vehicles.

In response, VW asserted various objections as to each RPD, which are addressed collectively as VW did in its separate statement. Plaintiff asserted objections on grounds that VW’s responses failed to indicate that it will produce *all documents and*

things that are in its possession, custody, or control. Instead, VW only agreed to produce documents that it has no objection to, which is not Code-Compliant. (CCP §§ 2031.210 – 2031.240.) In addition, VW’s responses do not affirm that a *diligent search and a reasonable inquiry were made* or that an inability to comply is due to an item/category having *never existed, has been destroyed, lost, misplaced, or stolen, or never has been, or is no longer in the possession, custody, or control of responding party* and the *name and address* of anyone believed to have such an item/category. To the extent the written responses are not Code-compliant, further written responses are required.

VW also objects that the RPDs fail to specifically describe each individual item or reasonably particularize each category of item. (CCP § 2031.030(c)(1).) However, VW has not explained how the RPDs are not straightforward and understandable.

Further, VW objected on grounds that the RPDs are vague, and ambiguous¹; overly broad²; unduly burdensome and oppressive³; seeks information that is irrelevant or is not reasonably calculated to lead to the discovery of admissible evidence⁴; premature disclosure of expert information⁵; seeks documents that are protected as

¹ VW has not specified any particular term that is objectionable. Moreover, this objection is only valid where the matter is unintelligible, which is not the case. (*Deyo v. Kilbourne* (1978) 78 Cal.App.3d 771, 783.)

² VW argues that the requests are overly broad. However, VW has not provided any specific showing. To the extent that they are overly broad in scope, they can be limited. For instance, one limitation may be made as to complaints by consumers in California regarding the same defects as alleged in vehicles of the same year, make and model as Plaintiffs’ vehicle during a particular time period.

³ As to VW’s objection on the ground that the request is unduly burdensome, a discovery burden is “undue” only if the inconvenience and expense of responding *clearly outweighs* the benefits *likely* to be obtained if the requests are answered. (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2025) §8:1475.13, citing CCP §2031.210(d).) The objecting party is required to provide evidence to support its claim of undue or excessive burden that shows the amount of work required, otherwise, the trial court has nothing “upon which to base a comparative judgment that any responsive burden would be undue or excessive, relative to the likelihood of admissible evidence being discovered.” (*Id.* citing *Williams v. Sup. Ct. (Marshalls of CA, LLC)* (2017) 3 Cal.5th 531, 549-550.) Here, VW has made no such showing.

⁴ Information should be regarded as relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement. (See *Lipton v. Superior Court* (1996) 48 Cal.App.4th 1599, 1611; *Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546.) Importantly, admissibility is not the test, and information, unless privileged, is discoverable if it is reasonably calculated to lead to the discovery of admissible evidence. (*Lipton*, 48 Cal.App.4th at 1611.) “Thus, the scope of permissible discovery is one of reason, logic and common sense.” (*Id.* [citation and internal quotation marks omitted].) This information may assist Plaintiff in proving his SBA claims and supporting civil penalties.

⁵ VW has not explained how these requests seek expert information. In fact, nothing in the requests seek expert information, and no experts have been designated in this case. As a result, this objection is unwarranted.

confidential, proprietary, or commercially sensitive⁶; trade secret⁷; and, seeks information protected by the attorney-client privilege and attorney work product doctrine⁸. Notably, other vehicle information is discoverable in this case to the extent it concerns the same year, make, and model as the subject vehicle concerning the same defects in California.⁹ VW also asserts the RPDs seek documents that are equally

⁶ VW also asserts an objection that the requests seek information that may be commercially sensitive, confidential and proprietary. VW has not explained what this information is, and how the information sought is protected. VW should be required to produce responsive documents subject to the stipulated protective order, which is already in place.

⁷ As to VW's objection that the information sought is trade secret, it has not explained how or why the information sought is protected. Trade secret "means information, including a formula, pattern, compilation, program, device, method, technique, or process, that: (1) Derives independent economic value, actual or potential, from not being generally known to the public or to other persons who can obtain economic value from its disclosure or use; and (2) Is the subject of efforts that are reasonable under the circumstances to maintain its secrecy." (Civil Code §3426.1(d).) The party asserting trade-secret objection has the burden to establish its existence. (*Bridgestone/Firestone, Inc. v. Sup. Ct.* (1992) 7 Cal.App.4th 1384, 1390.) VW provides no evidence demonstrating the existence of a trade secret as to the subject requests. In addition, even if trade secret information is implicated, VW could be required to produce responsive documents subject to the protective order filed on 5/21/26.

⁸ The attorney-client privilege permits the client, whether or not a party, to refuse to disclose, and to prevent another from disclosing, a *confidential communication between client and lawyer*. (Evid. Code § 954.)

CCP §2018.030 states the attorney "work product" doctrine, which limits the conditions under which "work product" is discoverable. Work product includes the attorney's evaluation or interpretation of the law or facts. (*Mack v. Sup. Ct. (State of Calif.)* (1968) 259 Cal.App.2d 7, 10.) CCP §2018.030(a) provides an absolute privilege for an attorney's core work, defined as any "writing reflecting an attorney's impressions, conclusions, opinions, or legal research or theories." (*Izazaga v. Superior Court* (1991) 54 Cal.3d 356, 381-382.)

CCP §2018.030(b) also provides a conditional or qualified privilege for general work product and bars discovery of other aspects of an attorney's work product unless denial of discovery would unfairly prejudice a party or result in an injustice. (*State Farm Fire & Cas. Co. v. Superior Court* (1997) 54 Cal.App.4th 625, 540.) The call of the subject requests do not seek attorney-client communications, or any kind of attorney work product. Nonetheless, a privilege log may be required.

⁹ In this case, relevant discovery is limited to the alleged defects in the same year, make, and model as the subject vehicle in California. Moreover, as to similar information relating to the same year, make and model as the subject vehicle, such information is discoverable. (See *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 971 [defendant was ordered during discovery to produce documents regarding other similar complaints].) Although *Doppes* was not a discovery decision, it does indicate that information regarding prior complaints is relevant to the litigation. (CCP§ 2017.010 [a party is entitled to anything that "either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence."].)

In *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, the defendant car company argued that the court erred when it denied its motion in limine to preclude evidence of "other vehicles" and non-warranty repairs. The appellate court rejected the argument: [The expert's] "other vehicle" testimony ... did not concern simply other vehicles. It was limited to the transmission model Ford installed in plaintiff's truck and other vehicles. [The expert] described what Ford itself had done to notify dealers and technicians about problems with this transmission model. Thus, everything about which he testified that applied to other vehicles applied equally to plaintiff's vehicle. Such evidence certainly was probative and not unduly prejudicial. (*Id.* at p. 154.) While the question in *Donlen* was one of admissibility, the case is instructive with regard to the relevance of information concerning other vehicles. (See also *Jensen v. BMW of North America, LLC* (S.D. Cal. 2019) 328 F.R.D. 557, 562 [allowing discovery regarding similar defects in other vehicles].) This information may assist Plaintiff in proving a violation under the Song Beverly Act, and is therefore, relevant at least to that issue.

available. This objection is meritless, and does not excuse VW from producing documents in its possession, custody, and control. *All of these objections are unwarranted.*

Importantly, as to the subject RPD Nos. 1-14, VW appears to provide statement of compliance specifying certain documents that it agreed to produce. For instance, in RPD No. 1, following the objections, VW asserts that subject to the objections and without waiving them and interpreting the request as excluding privileged attorney-client communications, “all responsive documents in the demanded category that are in the possession, custody, or control of VWGoA and to which no objection has been made will be included in the production.” VW then lists certain documents as responsive. VW also asserts that certain documents “will be produced upon execution of a stipulation and protective order” (e.g., RPD No. 15-25, 28-29, 31), which order was granted and filed on 5/21/26. However, VW has apparently not provided supplemental responsive documents since the protective order was filed. (Reply p. 3:20-21.) The Court could clarify whether supplemental responsive documents have been provided. VW has also not provided a privilege log for documents being withheld that are not subject to the protective order (e.g., attorney-client communications.)

Thus, it is unclear whether VW is withholding any documents based on the asserted objections, which are discussed above, and are meritless although it appears documents are being withheld that are responsive to RPD Nos. 26, 27, and 30. As a result, VW is required to provide a further Code-compliant response clarifying whether it has withheld any documents and a privilege log, if necessary. Notably, there is a stipulated protective order in place, which makes the objections based on confidentiality, proprietary, commercially sensitive, and trade secret meritless in this case.

The motion is Granted.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600587	COUNTY OF RIVERSIDE VS TORRES	MOTION FOR PRELIMINARY INJUNCTION

Tentative Ruling:

This motion for a preliminary injunction is unopposed. Accordingly, the motion is granted in all respects. The proposed order submitted has been signed and ordered filed. Moving party to give notice of ruling.